

("timestamps") indicated on the 3GPP document lists corresponded to the dates on which the respective documents were uploaded to the 3GPP file server.

3.2.4 Public prior use

a) General

The state of the art is held to comprise everything made available to the public by means of a written or oral description, **by use**, or in any other way, before the date of filing of the European patent application (Art. 54(2) EPC). Use can take the form of producing, offering or marketing or otherwise exploiting a product, offering or marketing a process or its application or applying the process. Marketing may be effected, for example, by sale or exchange (see Guidelines G-IV, 7.1 – March 2022 version).

Instances of public prior use or availability in any other way will typically be raised in opposition proceedings. Under established case law (see e.g. T.194/86; T.232/89; T.78/90; T.600/90; T.602/91; T.522/94, OJ 1998, 421; T.927/98; T.805/05), the following has to be clarified to determine whether an invention has been made available to the public by prior use: (i) when the prior use occurred, (ii) what was made available to the public through that use and (iii) the circumstances of the use, i.e. where, how and by whom the subject-matter was made public through that use.

See also: chapters IV.C.2.2.8.i) "Alleged public prior use"; V.A.5.13.6 "Public prior use"; and various sections in chapter III.G. "Law of evidence".

Although prior use is dealt with here in this chapter on novelty, specifically in its section on determining the prior art, it should be borne in mind that, whilst chiefly important in that context, what can be regarded as prior art is also relevant in examining inventive step (see e.g. T.1464/05 – public prior use as closest state of the art; T.23/11; T.2170/12).

Under Art. 114 EPC the EPO has only a limited obligation to undertake an examination of its own motion with regard to public prior use (T.129/88 (OJ 1993, 598) and T.34/94, on which see chapter V.A.3.3. "Facts under examination – applying Article 114 EPC in appeal proceedings").

b) Public prior use occurred

In T.84/83 a new type of wide-angle mirror had been fitted to a motor vehicle for demonstration purposes for at least six months. The board held this to constitute prior public use as, during such a time, the vehicle could be expected to be parked on public highways and hence open to inspection by third parties.

T.1416/10 concerned the public prior use of a washing machine manufactured and sold by the patent proprietor under model number WD-R100C. The board noted that, although there was no proof on file that the specific washing machine had indeed been available to the public prior to the relevant date of the patent in suit, notwithstanding that it was highly unlikely that this specific machine had remained with the manufacturer for more than one

month before being delivered for sale to a distributor, the evidence submitted by the opponent allowed the conclusion to be drawn beyond any reasonable doubt that washing machines with the model number WD-R100C had been publicly available to the distributors for public sale prior to the relevant date of the patent in suit.

In T.1682/09 the appellant alleged public prior use of an assembly of a weighing system. The board observed that, according to the established case law, the sale of an apparatus is, in the absence of any special circumstance, sufficient to render it available to the public. In the case at issue, the assembly had only been leased; it was not owned by the company. The board however found that mounting the assembly at the company's premises and the subsequent conventional start-up, training and maintenance procedures of the assembly at the same premises had rendered its features available to the company, which had constituted a member of the public at that time.

In T.2440/12 the invention was a method to be performed by a computer. The board came to the conclusion that prior use of a software product in the form of sales made the method implemented by the software part of the state of the art since, in principle, the skilled person could have executed the software line-by-line on a computer, and, in doing so, would have not only carried out the method, but also gained knowledge of the method steps performed by the computer. The board concurred with the appellant that even a different "disclosure" of the method, as could be obtained by executing it on a computer line-by-line without infringing copyright protection, was sufficient to take away the novelty of the method as claimed. Hence, the subject-matter of claim 1 was not new following the prior use of a software product which undisputedly embodied the claimed subject-matter.

In T.2210/12, the appellant (patent proprietor) contended that the installation of machinery on Volkswagen's private factory premises could not result in its having been made publicly available (see, in relation to shipyards, T.245/88 and T.901/95). The board, however, considered it established that the machinery's delivery had not been subject to any duty of confidentiality. Since Volkswagen itself already counted as part of the public, it made no difference whether or not third parties had access to its premises. See also T.2273/11.

In T.1647/15, in which one of the parties objected to the language the opposition division's chairman had used to silence its representative, the board, having dealt with this objection itself and taken into account how long the proceedings had already lasted, decided not to remit the case to the opposition division and ruled that the alleged prior use (sale of three types of Scheuerle trailer – photographs produced) had been established. As regards the photos, the patent proprietor hinted at the possibility that the trailers might have been modified since the priority date of the patent. However, taking common wisdom into account and considering that the claimed subject-matter referred to the basic design of the trailer, it seemed very unlikely that these very special vehicles had undergone significant design modifications impacting features of the claim.

c) No public prior use

In T.363/90 a machine fitted with a sheet feeder corresponding to the claimed invention had been exhibited and demonstrated at trade fairs. The board concluded that, under the

circumstances, it was impossible for the skilled person to recognise – or to infer on the basis of further information – the technical features and the functions of the exhibited sheet feeder to an extent which would have enabled him to copy its design, let alone develop it further.

In T.208/88 (OJ 1992, 22) the board held that an effect (in this case, growth regulation) not previously described, but actually occurring during the execution of a known teaching (in this case, use as a fungicide) and intended as the basis of a use invention, had in any event not been made available to the public, if it was not revealed so clearly during such execution as to disclose the invention's essential character, at least potentially, to an unlimited number of skilled persons (cf. G.6/88).

In T.245/88 several vaporisers had been installed in a fenced-off area of a shipyard. The public did not have unrestricted access to this area. The board was of the view that the vaporisers had not been made available to the public. See T.2028/16 for a decision concerning a sale to the German military, which in itself did not constitute a public prior use.

In T.901/95 the board decided that merely claiming that generating equipment was installed into ships at three different shipyards and thus available to the public was not enough to demonstrate its obvious prior use. Shipyards were normally considered restricted areas and thus not open to the general public. Nor could the possibility be excluded that shipyards' business partners might secure their common interests through explicit or tacit secrecy agreements, in the absence of other protection. In the case in point, it was also questionable whether the relevant process steps and the functional arrangement of the switching means were apparent from merely looking at built-in apparatus; nor was it certain when the generating installations had become operational. The board did not in these circumstances consider the alleged public prior use.

In T.801/98 the board, having found that an alleged **prior use by sale**, in the form of a delivery of locks to a psychiatric clinic before the contested patent's priority date, had been established, considered that there was insufficient evidence to overcome the doubts as to whether it had been public.

In T.945/09 (patient – clinical trials) the board found that there had been prior use but it had not been public.

In T.1410/14 it was common ground between the parties that a vehicle ("City Runner") with the claimed features had been test driven on a route forming part of a town's public transport network on a particular date, but also that the coupling joint in question could have been seen only from above, namely from an overhead pedestrian bridge. For the board, it was not proven that this prior use would have enabled a skilled person to identify all the features of the invention. In particular, the appellant had failed adequately to show that a specific feature (a bracket forming part of the pivot bearing and held displaceably on the coach body) had been apparent to the skilled person during the test drives. Summing up, the board held that features of subject-matter that had been visible only briefly could be considered to have been made publicly available only if it could be shown

beyond doubt that they had been clearly and directly apparent to the skilled person for that short time. In T.1551/14, the patentee relied on T.363/90 and T.1410/14. The board considered that these decisions did not apply to the case in hand

In T.1217/01 an invoice was the only document bearing a date earlier than the contested patent's priority date that had been adduced by the appellant (opponent) in support of an alleged prior use, but it did not disclose the composition of the product sold. The board found that the product's composition could therefore be deduced only by "reverse reasoning", working back from the invoice to the product's production (packaging, mixture, weight, elaboration) and, from there, to the formula used. However, owing especially to changes in product names and numbering, which made it impossible to reconstruct where the cited product fitted into the product family, the board ultimately ruled that the evidence was not conclusive enough.

In case T.1534/16 the appellant (patent proprietor) raised doubts concerning the public availability of the installations in accordance with the alleged prior uses, in particular by referring to the presence of an obligation to maintain secrecy. The board, regarding the appellant's doubts as justified and considering that further investigations would require the co-operation of the opponent, who withdrew its opposition, concluded that the allegations of prior use were to be disregarded.

In T.72/16 the board held that a shipment of 48 pipe sections was subject to at least an implied confidentiality agreement. The recipient was not a mere customer; the relevant companies had contracted to develop and deliver prototypes and products for test purposes.

d) Internal structure or composition of a product

In many cases the ability to recognise a technical teaching such as the internal structure or composition of a product in prior use presupposes analysis of the product embodying this technical teaching. Whether it is technically feasible to analyse a product that is available on the open market is an issue that the boards have considered on a number of occasions.

In T.952/92 (OJ 1995, 755) the board stated that information as to the composition or internal structure of a prior sold product is made available to the public and becomes part of the state of the art if **direct and unambiguous access** to such information is possible by means of known analytical techniques which were available for use by a skilled person before the relevant filing date (see also T.2/09). The board also stated that the likelihood or otherwise of a skilled person analysing such a prior sold product, and the degree of burden (i.e. the amount of work and time involved in carrying out such an analysis), is in principle irrelevant to the determination of what constitutes the state of the art. The novelty of a claimed invention is destroyed by the prior disclosure (by any means) of an embodiment which falls within the claim. The possibility of a complete analysis of a prior sold product is not necessary. The novelty of a claim is destroyed if an analysis of a prior sold product is such as to inform the skilled person of an embodiment of the product which falls within the claim.

In G 1/92 (OJ 1993, 277) the Enlarged Board of Appeal held that the chemical composition of a product forms part of the state of the art when the product as such is available to the public and can be analysed and reproduced by the skilled person, irrespective of whether or not particular reasons can be identified for analysing the composition. The same principle applies mutatis mutandis to any other product. It also stated that "[a]n essential purpose of any technical teaching is to enable the person skilled in the art to manufacture or use a given product by applying such teaching. Where such teaching results from a product put on the market, the person skilled in the art will have to rely on his general technical knowledge to gather all information enabling him to prepare the said product. Where it is possible for the skilled person to discover the composition or the internal structure of the product and to reproduce it without undue burden, then both the product and its composition or internal structure become state of the art". However, the Enlarged Board added that "a commercially available product per se does not implicitly disclose anything beyond its composition or internal structure. **Extrinsic characteristics**, which are only revealed when the product is exposed to interaction with specifically chosen outside conditions, e.g., reactants or the like, in order to provide a particular effect or result or to discover potential results or capabilities, therefore point beyond the product per se as they are dependent on deliberate choices being made. Typical examples are the application as a pharmaceutical product of a known substance or composition (cf. Article 54(5) EPC) and the use of a known compound for a particular purpose, based on a new technical effect (cf. G 2/88, OJ 1990, 93). Thus, such characteristics cannot be considered as already having been made available to the public". See below on T 472/92, T 834/15, T 1409/16 and T 1666/16 which (among other things) discuss the issue of extrinsic characteristics.

(i) Structure or composition made available to the public

In T 390/88 a photographic film had been made available to the public by announcement at a press conference three weeks before the priority date. The board held that this relatively short time interval was sufficient to enable interested parties to become fully aware of the film's composition.

In T 969/90 and T 953/90 the board ruled that the internal structure of a product in prior use had been made available to the public because a skilled person relying on the normal means of investigation available to them would have been able to analyse the product.

In T 301/94 the board decided that the skilled person would have been able to reproduce the green glass without undue burden and that this was sufficient to meet the requirement of reproducibility set out in G 1/92. A skilled person must be able to prepare the product without undue burden on the basis of his general technical knowledge and knowing the composition or internal structure of the product, whatever the scale of production (laboratory, pilot or industrial scale). The board held that when a commercially available product could be analysed by the analytical methods known on the priority date and could also be reproduced, its chemical composition formed part of the state of the art even if a skilled person could not have recognised a priori (i.e. before performing an analysis), on the basis of the common general knowledge on the priority date that at least one component was present in the product, or was present in an "unusual small" amount